

Opinion of the Court

Finally, the principal dissent finds it “troubling” that the Court does not “designate any course of conduct alleged in the indictment as private.” *Post*, at 682. Despite the unprecedented nature of this case, the significant constitutional questions that it raises, its expedited treatment in the lower courts and in this Court, the lack of factual analysis in the lower courts, and the lack of briefing on how to categorize the conduct alleged, the principal dissent would go ahead and declare all of it unofficial. The other dissent, meanwhile, analyzes the case under comprehensive models and paradigms of its own concoction and accuses the Court of providing “no meaningful guidance about how to apply [the] new paradigm or how to categorize a President’s conduct.” *Post*, at 698 (opinion of JACKSON, J.). It would have us exhaustively define every application of Presidential immunity. See *post*, at 698–699. Our dissenting colleagues exude an impressive infallibility. While their confidence may be inspiring, the Court adheres to time-tested practices instead—deciding what is required to dispose of this case and remanding after “revers[ing] on a threshold question,” *Zivotofsky*, 566 U. S., at 201, to obtain “guidance from the litigants [and] the court below,” *Vidal v. Elster*, 602 U. S. 286, 328 (2024) (SOTOMAYOR, J., concurring in judgment).

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This case poses a question of lasting significance: When may a former President be prosecuted for official acts taken during his Presidency? Our Nation has never before needed an answer. But in addressing that question today, unlike the political branches and the public at large, we cannot afford to fixate exclusively, or even primarily, on present exigencies. In a case like this one, focusing on “transient results” may have profound consequences for the separation of powers and for the future of our Republic. *Youngstown*, 343 U. S., at 634 (Jackson, J., concurring). Our perspective